Montgomery County District Court

Cause No. 2025-CV-0029

Amy Anderson, Plaintiff, v. Harbor Point Mutual Auto Insurance, Defendant

Defendant's Original Answer

Date:	12-2-25
Counsel for defendant:	Stephanie Williams, Ashford & Lyle LLP

Defendant, by and through its undersigned counsel, files this Original Answer to Plaintiff's Original Petition and respectfully shows the Court as follows.

General Denial. Pursuant to Texas Rule of Civil Procedure 92, Defendant generally denies each and every allegation contained in Plaintiff's Original Petition and demands strict proof thereof by a preponderance of the evidence, as required by the Constitution and laws of the State of Texas.

Affirmative Defenses. Without assuming any burden of proof that it would not otherwise bear, Defendant asserts the following defenses.

First, Plaintiff's own negligence proximately caused or contributed to the collision. Plaintiff failed to keep a proper lookout, failed to yield the right-of-way to oncoming traffic, and failed to take reasonable evasive action. Under Chapter 33 of the Teaxs Civil Practice and Remedies Code, any recovery must be reduced by Plaintiff's percentage of responsibility, and bars recovery if that percentage exceeds fifty percent.

Second, the collision was caused by the acts or omissions of a third party over whom Defendant had no control, and such conduct constitutes a new and independent cause of the injuries alleged.

Third, Plaintiff failed to mitigate damages by failing to follow reasonable medical advice and by incurring medical expenses that were unnecessary or unreasonable in amount.